

25NWLC58966 25NWLC58966

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-18

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Case Number: 25NWLC58966 Hearing Date: August 18, 2026 Dept: Y

25NWLC58966: MAERSK LOGISTICS AND SERVICES USA, INC. vs JIANGHAI AMERICA INC., A CALIFORNIA CORPORATION

Tentative Ruling:

The Court has read and considered Plaintiff Maersk Logistics Services USA, Inc.'s ("Plaintiff") Motion to Set Aside Dismissal and the unsigned attorney declaration filed on May 14, 2026.

Plaintiff argues that it mistakenly filed a dismissal without prejudice to the entire action rather than a dismissal without prejudice pursuant to Code of Civil Procedure § 664.6. Plaintiff requests that the Court set aside the dismissal.

The motion was initially set for hearing on May 4, 2026. The Court found that Plaintiff failed to submit an agreement pursuant to Code of Civil Procedure § 664.6 and continued the hearing on the motion to July 9, 2026.

On July 9, 2026, the Court held a second hearing on the motion and requested that Plaintiff submit an amended motion based on Code of Civil Procedure § 473.5. Plaintiff has failed to file an amended motion.

Without an amended motion or an agreement signed by the Defendant pursuant to Code of Civil Procedure § 664.6, the Court has no authority to set aside the dismissal. Plaintiff's motion is DENIED.

Plaintiff to give notice.